

Court No. - 29

Case :- WRIT - C No. - 33762 of 2018

Petitioner :- Sushmita Raghav

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- A.C.Tiwari(Ac),Sri O. P. Singh
(Sr. Advocate),Sushil Kumar Rao

Counsel for Respondent :- C.S.C.,Brij Bhushan
Paul,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

As prayed by learned counsel for both the parties, put up
on Monday, i.e.8th October, 2018 as fresh.

Order Date :- 5.10.2018

Akbar

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Hon'ble Pankaj Mithal, J.

Hon'ble Rajiv Joshi, J.

Heard Sri O.P. Singh, learned Senior Advocate appearing for the petitioner, learned Standing Counsel for the respondent nos. 1 and 2, Sri Ravi Anand, learned counsel for the respondent nos. 3 and 4 and Sri B.B. Paul, learned counsel for the respondent no.5.

The petitioner claims that she is a tenant in a flat and her electricity connection installed in the said flat has been disconnected.

It appears that there is some dispute between the petitioner and the landlord-respondent no.5. The Additional City Magistrate (IInd), Allahabad on 25.6.2018 passed an order that the prepaid electricity connection installed in the flat of the petitioner should be disconnected and appropriate proceedings be taken in respect thereof. On the basis of the aforesaid order, the Executive Engineer vide order dated 31.7.2018 has ordered that as there is no agreement of tenancy between the petitioner and the respondent no.5, a decision has been taken to disconnect the prepaid connection and that it cannot be recharged.

It is against the aforesaid action of the respondents, that the petitioner has preferred this writ petition.

The submission of Sri O.P. Singh, learned Senior Advocate appearing for the petitioner is that Additional City Magistrate (IInd), Allahabad has no authority of law to intervene in the matter and direct for the disconnection of the electricity connection. The Executive Engineer has passed the impugned order on the directions of the Additional City Magistrate (IInd), Allahabad without application of his own mind.

A bare reading of the impugned order reveals that Executive Engineer, who is the competent authority to grant electricity connection or to order for the disconnection has not applied his own mind in passing the impugned order dated 31.7.2018. The said order is passed solely on the basis of the order dated 25.6.2018 of the Additional City Magistrate (IInd), Allahabad.

In view of the above, we are of the view that the said order cannot be sustained.

Accordingly, the order dated 31.7.2018 (annexure-9 to the writ petition) is hereby quashed and the matter is remanded to the Executive Engineer (Distribution) Vidhyut Nagar Vitran Khand, Purvanchal Vidhut Vitran Nigam Ltd, Mayo Hall, Allahabad to reconsider the matter on its own merits independent of the order of the Additional City Magistrate (IInd), Allahabad dated 25.6.2018 in accordance with law, especially Electricity Supply Code, 2005, upon hearing the petitioner as well as respondent no.5 most expeditiously, if possible, within a period of one month from the date of production of certified copy of this order.

It is further provided that for a period of one month from today or till any final decision is taken in the matter by the Executive Engineer, whichever is earlier, the authorities will not refuse to recharge the prepaid connection of the petitioner.

With the aforesaid direction, writ petition is disposed of.

Order Date :- 9.10.2018

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